

Form No.HCJD/C-121

ORDER SHEET
IN THE LAHORE HIGH COURT
LAHORE.
JUDICIAL DEPARTMENT

Case No. **Crl. Rev. No. 761 of 2015.****Muhammad Arshad Khan. Versus The State and another.**

Sr. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary.
---------------------------------	------------------------------	--

24-07-2015	Mr. Muhammad Zafar Chaudhary, Advocate, for the petitioner. Mr. Tariq Javed, DPP on Court's call.
------------	--

The instant criminal revision petition has been filed by the petitioner challenging the order dated 13.7.2015, passed by the learned Additional Sessions Judge, Mianwali. The petitioner sought transfer of his bail application from the Court of Mr Shafquat Ullah Khan, learned ASJ, Mianwali, to the Court of Syed Asghar Ali, ASJ, Mianwali, on the ground that earlier three bail applications were withdrawn from the Court of Syed Asghar Ali, learned ASJ Mianwali and one bail application of co-accused, namely, Arshad was granted by the said Court and in the light of the case reported as The State through Advocate General N.W.F.P. Vs. Zubair and 4 others (P.L.D. 1986 SC 173).



2. It is contended by the learned counsel for the petitioner that the order passed by the learned ASJ, Mianwali, while dismissing the petition has ignored the judgments passed by the Honourable Supreme Court of Pakistan and has erred in law as it was mandatory upon him to adjourn the bail petition of the petitioner while waiting for Syed Asghar Ali, learned ASJ Mianwali, to resume his office as he was not available due to summer vacations.

3. On the other hand, learned District Public Prosecutor has opposed this petition and has supported the order dated 13.7.2015, passed by the learned ASJ, Mianwali, on various grounds.

4. Heard. Record perused.

5. Mr. Shafquat Ullah Khan, learned ASJ, Mianwali, categorically mentioned in the impugned order that specifically order dated 11.7.2015 was passed by the learned District & Sessions Judge, Mianwali, that he has to deal with the urgent civil and criminal work of the Court of Syed Asghar Ali, learned ASJ, Mianwali, as he was on special casual leave from 12.7.2015 to 1.8.2015. The grievance of the petitioner is ill founded. The petitioner has relied upon the famous judgment reported as The State through Advocate General N.W.F.P. Vs. Zubair and 4 others (P.L.D. 1986 SC 173) which was revisited by

the Honourable Supreme Court of Pakistan in To Revisit "The State Vs. Zubair" (P.L.D. 2002 SC 1) meaning thereby that the said judgment does not hold the field wherein it was observed that due to non-availability of the Bench/Judge who had earlier dealt with the bail application owing to exigencies of service or any other sufficient cause, departure has to be made in the larger interest of justice and refer the cause to another Bench/Judge. A latter case in the same thread was the case of Ali Sheharyar vs. The State (2008 SCMR 1448). Reliance is placed upon the judgment of the Honourable Supreme Court reported as Nazir Ahmed and another Vs. The State and others (P.L.D. 2014 S.C. 241), wherein it has been held as under:-

"If the learned Single Judge who had dealt with the first bail application is not available and departure from (2) above is unavoidable, the learned Chief Justice concerned may refer the second or subsequent bail application to another learned Single Judge at the Principal Seat or Permanent Benches/Circuit Benches, as the case may be".

"Where the first bail application is heard and disposed of by a division Bench which is not available either at the Principal Seat or the Permanent Benches/Circuit Benches at the time of filing of the second or subsequent bail application then such bail application shall be heard by a Division Bench of which one of the



Judges was Member of the Division Bench which dealt with the first bail application. If none of the Members of the Division Bench which heard the first bail application is available the learned Chief Justice concerned may assign the subsequent bail application to any appropriate Division Bench at the Principal Seat or the Permanent Benches/ Circuit Benches, as the case may be."

"The above mentioned principles of practice and propriety laid down by this Court from time to time have consistently been followed by the courts in the country ever since."

I see no infirmity in the impugned order dated 13.7.2015, passed by the learned ASJ Mianwali. Reliance is placed on the latest pronouncement by the august Supreme Court of Pakistan in Nazir Ahmed and another Vs. The State and others (P.L.D. 2014 S.C. 241), therefore, the impugned order does not warrant interference as the Courts are not only bound to decide the cases pending before them but are also under the bounden duty of the earlier disposal of the matters, as in the present case the Judge was on special casual leave how an urgent matter like the bail petition can be kept in waiting or

lingering it on for unexplainable period, hence, this
petition having no merits is dismissed in limine.



(SHEHRAM SARWAR CH)
JUDGE

APPROVED FOR REPORTING.



JUDGE.

Munir.